

Notice from the National Commission for Data Protection regarding
Bill No. 8148 on the retention of personal data and amending: 1° the Code of Criminal Procedure; 2° the amended law of May 30, 2005 concerning the protection of privacy in the electronic communications sector; and 3° the amended law of July 5, 2016 reorganizing the State Intelligence Service
Deliberation No. 28/AV12/2024 of May 16, 2024.

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or "CNPDP") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Furthermore, Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a proposal for a legislative measure to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

2. By letter dated February 2, 2023, the Minister of Justice invited the National Commission to express its opinion on Bill No. 8148 on the retention of personal data and amending: 1° the Code of Criminal Procedure; 2° the amended law of May 30, 2005 concerning the protection of privacy in the electronic communications sector; and 3° the amended law of July 5, 2016 reorganizing the State Intelligence Service (hereinafter referred to as the "draft law").

3. According to the explanatory memorandum, the draft law aims to "respond to the requirements of European jurisprudence by allowing a reconciliation between the two requirements that are..."

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****Security and Freedom****

1. The Court of Justice of the European Union (hereinafter the "CJEU" or the "Court") has increasingly detailed its position regarding the possibility for telecommunications operators or providers of electronic communications services (hereinafter "operators and providers") to retain traffic and location data and for the competent national authorities to access the data thus retained since its first ruling on the matter in 2014.

4. The Court raises the point that such retention by operators and providers contradicts the principle of confidentiality enshrined in Directive 2002/58/EC of the European Parliament and of the Council of July 12, 2002, concerning the processing of personal data and the protection of privacy in the electronic communications sector (hereinafter the "Privacy and Electronic Communications Directive"). Thus, traffic and location data must, in principle, be erased or rendered anonymous when they are no longer necessary for the transmission of a communication.

5. However, this principle of erasure is subject to exceptions, particularly concerning the retention of data required for billing and payments for interconnection, or even the possibility, with the consent of the data subject, to process this data for commercial purposes or for the provision of value-added services. Another exception arises from Article 15 of this directive, which grants Member States the

possibility to limit the scope of rights and obligations in certain cases.

6. The case law regarding data retention thus primarily focuses on the Court's interpretation of the possible exceptions under Article 15 of the Privacy and Electronic Communications Directive. In the rulings that followed the first ruling "Digital Rights Ireland" of April 8, 2014, the Court increasingly refines this interpretation and provides indications regarding the conditions that must accompany these admissible exceptions to the principle of confidentiality.

1 Doc. pari. de dépôt, p. 17.

2 Judgment of April 8, 2014, Digital Rights Ireland e.a., C-293/12 and C-594/12, EU:C:2014:238.

3 Judgment of December 21, 2016, Tele2 Sverige and Watson e.a., C-203/15 and C-698/15, EU:C:2016:970; Judgment of October 2, 2018, Ministerio Fiscal C-207/16, EU:C:2018:788; Judgment of October 6, 2020, La Quadrature du Net e.a., C-511/18, C-512/18 and C-520/18, EU:C:2020:791; Judgment of October 6, 2020, Privacy International, C-623/17, EU:C:2020:790; Judgment of March 2, 2021, Prokuratuur, C-746/18, EU:C:2021:152; Judgment of April 5, 2022, Commissioner of An Garda Síochána e.a., C-140/20, EU:C:2022:258; Judgment of September 20, 2022, SpaceNet and Telekom Deutschland C-793/19 and C-794/19, EU:C:2022:702; Judgment of November 17, 2022, Spetsializirana prokuratura C-350/21, EU:C:2022:896; Judgment of April 30, 2024, Procura della Repubblica presso il Tribunale di Bolzano, C-178/22, EU:C:2024:371; Judgment of April 30, 2024, La Quadrature du Net e.a. (Personal Data and Fight Against Counterfeiting), C-470/21, EU:C:2024:370.

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7.

The CJEU determines that Article 15 of the Directive on Privacy and Electronic Communications, interpreted in light of the Charter of Fundamental Rights of the European Union, does not oppose national legislative measures providing for both the retention of traffic and location data and access to such data, provided that they are limited in terms of the objectives pursued as well as delineated in terms of the persons targeted, the means of communication concerned, the categories of data retained, and the duration of retention, and that they "ensure, through clear and precise rules, that the retention of the data in question is subject to compliance with the relevant material and procedural conditions and that the individuals concerned have effective safeguards against the risks of abuse."

8.

Over the past few years, the CJEU has been able to analyze, in its rulings related to data retention, various legislative measures for retention and access that have attempted to meet the requirements raised in its case law. Consequently, it has been able to increasingly specify what legislative measures for retention and access must comply with in order to be consistent with the legal framework regarding the protection of personal data. The explanatory memorandum extensively describes the majority of the requirements raised by the CJEU.

9.

In general, the CNPD wishes to remind that to ensure compliance with the principle of proportionality, the CJEU has repeatedly expressed that retention must be limited to what is strictly necessary to achieve the objectives. In its rulings, the CJEU systematically analyzes the proportionality of the measures.

10.

Thus, first, it determines the objectives pursued by the legislative measures for retention or access. This first step is essential, not only because the objectives are exhaustively listed in Article 15 of the Directive on Privacy and Electronic Communications, but also because the importance of the objective

pursued impacts the tolerated interference with the privacy of the individuals concerned. It is evident from reading the CJEU's rulings on data retention that the more important the objectives, the more the interference of the retention and access measures in the privacy of the individuals concerned is tolerated.

11.

It follows that the extent of the legislative measures for retention and access largely depends on the objective pursued. Thus, generalized and indiscriminate retention of traffic data may be tolerated, subject to certain conditions, for the objectives of safeguarding national security. However, for the fight against serious crime,

4 See judgment of September 20, 2022, SpaoNet and Telekom Deutschland C-793/19 and C-794/19, EU:C:2022:702, paragraph 132.

5 See judgment of October 6, 2020, La Quadrature du Net et al., C-511/18, C-512/18 and C-520/18, EU:C:2020:791, paragraph 112.

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it is necessary to limit the scope of retention or access measures based on objective and non-discriminatory criteria. This limitation may relate to the persons concerned, categories of data, geographical areas, or even the means of communication used. In the case of simple crime, the CJEU is even more demanding.

12. Secondly, the CJEU assesses both the duration of the retention and access measures and the duration of the data retention itself. Regarding the duration of data retention, the CJEU holds that it must be limited to what is strictly necessary to achieve the intended objective and be chosen based on objective criteria. As for the duration of the application of the measures, the CJEU has so far only ruled on measures concerning access to retained data. In this context, it explains that access "is in any case of a serious nature regardless of the duration of the period for which access to the said data is requested and of the quantity or nature of the data available for such a period, when [...] this set of data is likely to allow for precise conclusions to be drawn about the private life of the person or persons concerned," and that it must be limited to what is strictly necessary.

13. Finally, the CJEU requires that legislative measures "ensure effective protection of retained data against the risks of abuse as well as against any unlawful access and use of this data." These guarantees apply not only to legislative retention measures but also to legislative access measures to stored data.

14. According to the explanatory memorandum, the bill under review aims "to frame the retention and use of traffic and location data without depriving this data of its useful value, notably by setting strict conditions for access and duration of retention."

15. To this end, the bill intends to remove from the amended law of May 30, 2005, concerning the protection of privacy in the electronic communications sector.

6 See judgment of December 21, 2016, Tele2 Sverige and Watson et al., C-203/15 and C-698/15, EU:C:2016:970, paragraphs 110 and 111.

7 See judgment of April 8, 2014, Digital Rights Ireland et al., C-293/12 and C-594/12, EU:C:2014:238, paragraph 63.

8 See judgment of April 8, 2014, Digital Rights Ireland et al., C-293/12 and C-594/12, EU:C:2014:238, paragraph 64, and judgment of December 21, 2016, Tele2 Sverige and Watson et al., C-203/15 and C-698/15, EU:C:2016:970, paragraph 108.

9 See judgment of March 2, 2021, Prokuratuur, C-746/18, EU:C:2021:152, paragraph 39.

10 See judgment of March 2, 2021, Prokuratuur, C-746/18, EU:C:2021:152, paragraph 38.

11 See judgment of April 8, 2014, Digital Rights Ireland et al., C-293/12 and C-594/12, EU:C:2014:238, paragraph 66.

12 See judgment of December 21, 2016, Tele2 Sverige and Watson et al., C-203/15 and C-698/15, EU:C:2016:970, paragraph 122, which imposes on electronic communications service providers a data retention obligation on the territory of the European Union.

13 See judgment of December 21, 2016, Tele2 Sverige and Watson et al., C-203/15 and C-698/15, EU:C:2016:970, paragraph 121, which requires authorities to inform the persons concerned of the access, insofar as this information does not risk compromising ongoing investigations.

14 Parl. doc. of deposit, p. 17.

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(denoted hereinafter as the "Telecom Law") the obligation of generalized and indiscriminate retention of all traffic and location data for all purposes listed in Article 15 of the Directive on Privacy and Electronic Communications. As a substitute, it intends to introduce several legislative measures for data retention and access to such data that are supposed to meet the requirements of the CJEU.

16. In domestic law, the Constitution guarantees that the public freedoms of citizens are respected. In the context of this bill, these include, in particular, the public freedoms enshrined in Articles 20 (privacy), 30 (inviolability of communications), and 31 (data protection) of the Constitution that are at stake in this bill. Furthermore, Article 37 of the Constitution states that "any limitation on the exercise of public freedoms must be provided for by law [...]".

17. It is also important to mention Article 8.2 of the European Convention on Human Rights concerning the right to respect for private life, as well as the related case law. This provision states that "[t]here shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety, or the economic well-being of the country, for the defense of order or for the prevention of criminal offenses, for the protection of health or morals, or for the protection of the rights and freedoms of others." To determine compliance with Article 8.2, the European Court of Human Rights (hereinafter "ECHR") examines whether the interference is provided for by law, pursues a legitimate aim, and is proportionate to that aim.

18. The CNPD has already addressed this aspect, particularly that of proportionality as well as the foreseeability of the law in other opinions, and it limits itself to referring to those observations.

19. Nevertheless, the ECHR admits a mitigation for the criterion of foreseeability of the law in matters of secret surveillance: "The Court has repeatedly held that, in the context of interception of communications, 'foreseeability' cannot be understood in the same way as in many other areas. In the particular context of secret surveillance measures, such as the interception of communications, foreseeability cannot mean that an individual must be able to foresee when the authorities are likely to intercept their communications in such a way that they can adjust their conduct accordingly."

20. This mitigation is applicable in the context of data retention, given that the ECHR qualifies the retention of traffic and location data as a measure of

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****Secret surveillance whose degree of interference in the private lives of the individuals concerned is equivalent to that of the interception of the content of communication. The retention and access to traffic and location data must therefore benefit from the same safeguards as secret surveillance measures. Thus, “[...] the risk of arbitrariness becomes clear where an executive power is exercised in secret. The existence of clear and detailed rules regarding the interception of telephone conversations is therefore essential, especially as the technical processes that can be used continue to improve. The law must be drafted with sufficient clarity to adequately indicate to everyone under what circumstances and under what conditions it empowers the public authority to take such secret measures.”****

21. ****The European Court of Human Rights (ECHR) further adds that the law must clearly define the scope and the modalities of the exercise of the discretion of the authority ordering the surveillance measure to avoid arbitrariness. It “sets out the following minimum guarantees against abuses of power that the law must contain: the nature of the offenses that may give rise to an interception warrant, the definition of categories of persons who may be subjected to surveillance, the setting of a limit on the duration of the measure, the procedure to be followed for the examination, use, and retention of the collected data, the precautions to be taken for the communication of data to other parties, and the circumstances under which the deletion or destruction of recordings may or must occur.”****

22. ****Regarding the condition that the measure must be necessary in a democratic society, the ECHR specifies that adequate and effective safeguards must exist to prevent arbitrariness and abuses. It considers that the existence of a control over the necessity of the measure is such a safeguard and that the assessment must take into account all the circumstances of the case in question. The ECHR further explains that the control can take place at three moments: at the time the measure is ordered, during its execution, and when the measure is completed.****

23. ****In order to assess whether the various legislative measures provided for in the draft law comply with the requirements of the Court of Justice of the European Union (CJEU) and the ECHR, it is necessary to differentiate between legislative measures for data retention (I) and legislative measures for access to this data (II). Finally, it is also necessary to examine the other modifications (III) that the draft law intends to introduce.****

****17 See ECHR judgment of January 11, 2022, Ekimdzhev and others v. Bulgaria, paragraph 394.**

18 Ibid, paragraph 295.

19 See ECHR judgment of December 4, 2015, Roman Zakharov v. Russia, paragraph 229.

20 Ibid, paragraphs 230 and 231.

21 Ibid, paragraphs 232 to 234.**

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I.

Legislative Measures for Data Retention

24.

The draft bill represents a paradigm shift in that it introduces the principle of the prohibition of generalized and indiscriminate retention of traffic and location data. It is evident from the commentary on the articles that “contrary to the wording introduced by the Telecom Act [...], the principle enshrined in the new paragraph 1 is that of the prohibition of retention of traffic data. As provided by European case law, the data will therefore be deleted or anonymized based on the principle of necessity and as recommended by the CJEU.”

25.

It is indeed a consistent case law that the principle of confidentiality is to be interpreted strictly. Thus, the Court has repeatedly confirmed that a derogation from this principle based on Article 15 of the Privacy and Electronic Communications Directive cannot, particularly regarding the retention of such data, become the rule but must always remain the exception and must respect the principle of necessity.

26.

The CJEU provides in its rulings the requirements to be taken into account in order to ensure that retention is limited to what is strictly necessary. These delimitations can play a role at the level of the purposes for which the measure is intended. Given that the explanatory memorandum faithfully reflects the requirements that the CJEU has attached to each of these categories, this opinion will limit itself to referring to these explanations.

27.

The CJEU categorizes legislative measures for data retention into three main categories, namely targeted retention, generalized and indiscriminate retention, and expedited retention.

28.

Upon reading the draft bill, it becomes clear that the authors introduce these three categories of measures, some of which must be ordered (A) by the investigating judge, the prosecutor, or the intelligence service (hereinafter referred to as the "SRE"), while others result from a legal obligation to retain (B).

29.

Furthermore, the CJEU requires that the retention of traffic and location data be surrounded by sufficient and appropriate safeguards by operators and providers. As each retention measure must meet this requirement, it is appropriate to group the observations related to it in a dedicated section (C).

2 See judgment of December 21, 2016, *Tele2 Sverige and Watson et al.*, C-203/15 and C-698/15, EU:C:2016:970, paragraph 89.

23 Doc. parliamentary deposit, pp. 11 to 15.

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A. The conservation measures to be ordered

1. The conservation measure of the new article 24-3 of the Code of Criminal Procedure

30. Article 1, point 1° of the draft law introduces a new article 24-3 into the Code of Criminal Procedure (hereinafter referred to as the "CPP") aimed at providing the public prosecutor with a measure for the conservation of traffic and location data. Thus, the public prosecutor may order, in the context of the investigation, detection, and prosecution of criminal offenses that carry a criminal penalty or a correctional penalty with a maximum of one year or more of imprisonment, the conservation of traffic and location data that he deems necessary.

31. The CNPD shares the confusion expressed by the Public Prosecutors of the District Court of Luxembourg and Diekirch in their joint opinion regarding the lack of clarity as to whether the conservation measure applies to data that has already been generated or processed by operators and providers, or if it applies to data that will still be generated or processed by operators and providers from the date of the order. The commentary on the articles further contributes to the confusion, as the authors of the draft law refer to the measure both as targeted conservation and as "a kind of 'quick freeze' for the future." Thus, it is not entirely clear whether the new measure is a targeted conservation measure or a quick conservation measure.

32. According to the understanding of the CNPD, targeted conservation and quick conservation as described by the CJEU are two distinct legislative measures, each with distinct requirements. Indeed,

for quick conservation, the CJEU specifically requires that "[i]nsofar as the purpose of such quick conservation no longer corresponds to those for which the data were initially collected and retained, and where any processing of data must, under Article 8(2) of the Charter, serve specific purposes, Member States must specify in their legislation the purpose for which quick conservation of data may take place." This requirement is explained by the fact that the initial processing by operators and providers had a commercial purpose. However, after the quick conservation order, a new purpose is added to this initial purpose. This new purpose of

24 Joint opinion of the Public Prosecutors of the District Court of Luxembourg and Diekirch dated April 13, 2023, doc. pari. n°8148/03, p.3.

25 Doc. pari. de dépôt, p. 18.

26 Judgment of October 6, 2020, *La Quadrature du Net e.a.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791, para. 164 and judgment of April 5, 2022, *Commissioner of An Garda Síochána e.a.*, C-140/20, EU:C:2022:258, para. 87.

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****Prevention and Detection of Criminal Offenses****

33. Finally, according to the description provided by the CJEU, rapid retention should serve to preserve data at risk of loss or alteration. This is therefore a measure that applies to existing data already held by operators and providers, rather than to data that will be generated or processed in the future. Thus, the CNPD wonders whether the new Article 24-3 of the CPP does not merely introduce targeted retention rather than rapid retention.

34. As claimed by the Public Prosecutors of the District Court of Luxembourg and Diekirch in their joint opinion, clarifications regarding the legislative measure referred to in Article 24-3 of the CPP should be provided, particularly to specify whether it relates to data already generated or processed, and/or to data that will be generated or processed in the future. If indeed the authors of the bill aim to cover both scenarios, namely future data and existing data, the question arises whether it would not be clearer to provide for two separate provisions.

35. Furthermore, it would be interesting to know why the authors of the bill did not add the targeted retention measure to Article 24-1 of the CPP governing the "mini-instruction." Especially since effective judicial control would then be guaranteed and a link with Article 67-1 of the CPP dealing with access to the data thus retained would be established. According to the CNPD's understanding, it emerges from the parliamentary work on Article 67-1 of the CPP that the investigating judge can order access to the data retained by operators and providers as well as the retention of future data. The use of the mini-instruction would therefore be conceivable, provided that Article 67-1 of the CPP meets the requirements of the CJEU.

36. In the same vein, the CNPD wonders why the authors of the bill, if the measure under review should be a rapid retention measure, did not add it to Chapter X of the CPP providing for the rapid retention of computer data available to the investigating judge and the public prosecutor.

37. In any case, legislative measures must meet the requirements of the CJEU. Therefore, in the event that the new Article 24-3 of the CPP governs a targeted retention measure for traffic and location data, it can only be taken "for the purposes of the...

27 Judgment of October 6, 2020, *La Quadrature du Net et al.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791, paragraphs 162 and 163.

28 Joint opinion of the Public Prosecutors of the District Court of Luxembourg and Diekirch dated April 13, 2023, doc. pari. No. 8148/03, p.3.

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****National Security Safeguarding, Combatting Serious Crime, and Preventing Serious Threats to Public Safety****. Furthermore, it must be "defined based on objective and non-discriminatory elements, either by categories of affected individuals or through a geographical criterion, for a strictly necessary and temporally limited period, but renewable." The Court further specifies that such a measure must ensure, "through clear and precise rules, that the retention of the data in question is subject to compliance with the relevant material and procedural conditions and that the individuals concerned have effective safeguards against the risks of abuse."

38. Regarding the purposes for which targeted retention measures may be employed, the case law of the European Union admits that this is only possible "for the purposes of safeguarding national security, combating serious crime, and preventing serious threats to public safety."

39. It should be noted that the new Article 24-3 of the CPP establishes a threshold as a delimitation criterion, namely criminal offenses that carry a criminal penalty or a correctional penalty with a maximum of one year or more of imprisonment. The CNPD shares the assessment of the Council of State that "the offenses punishable by a prison sentence of one year or more do not all fall under serious crime." Thus, it is appropriate to question whether the established threshold is sufficiently high. The CNPD reiterates its previously expressed preference in several opinions for a restrictive list of offenses classified as serious. A restrictive list would allow legislative measures to be reserved for investigations and prosecutions related to offenses that clearly fall within the context of serious crime.

40. The authors of the bill explain that this is a national political choice, as the concept does not have a harmonized definition at the European Union level. In a recent ruling, the CJEU confirms this approach while reminding that "the definition of 'serious offenses' established by Member States must respect the requirements arising from this Article 15, paragraph 1, read in light of Articles 7, 8, and 11 as well as Article 52, paragraph 1, of the Charter."

29 Judgment of October 6, 2020, *La Quadrature du Net et al.*, C-511/18, C-512/18, and C-520/18, EU:C:2020:791, paragraph 168.

30 Ibid.

31 Ibid.

32 Ibid.

33 See opinion of the Council of State of January 23, 2024, doc. pari. 8148/05, p. 4.

34 See for example opinion No. 85/2010 of April 24, 2010, and opinion No. 214/2014 of May 13, 2014.

35 Doc. pari. de dépôt, p. 20 et seq.

36 Judgment of April 30, 2024, *Procura della Repubblica presso il Tribunale di Bolzano*, C-178/22, EU:C:2024:371, paragraphs 44 to 47.

37 Ibid., paragraph 47.

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In this regard, the Court emphasizes that "Member States cannot distort the notion of 'serious offense'

and, by extension, that of 'serious crime', by including, for the purposes of the application of this Article 15, paragraph 1, offenses that are clearly not serious, in light of the societal conditions prevailing in the concerned Member State, even though the legislator of that Member State has provided for them to be punished by a maximum sentence of imprisonment of 5 years."³⁸

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Even though the Court does not propose a definition for the notions of 'serious offense' or 'serious crime', it nevertheless provides considerations to be taken into account by Member States. Thus, the Court does not reject the concept that the seriousness of the offense is determined by a threshold.³⁹ Indeed, the Court believes that a threshold set by law is an objective criterion for determining the degree of seriousness of an offense.

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However, the Court also raises that the threshold chosen by Member States "must not be so broad that access to this data becomes the rule rather than the exception."⁴⁰ It adds that the notion of 'serious crime' or 'serious offense' must not "cover the vast majority of criminal offenses, which would be the case if the threshold beyond which the maximum penalty for an offense justifies its classification as a serious offense were set at an excessively low level."⁴¹

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Still concerning the determination of serious offenses by a threshold, the Court further notes that "by reference not to a minimum applicable penalty but to a maximum applicable penalty, it is not excluded that access to data, constituting a serious interference with fundamental rights, may be requested for the purposes of prosecuting offenses that do not, in reality, fall under serious crime."⁴² However, it believes that this is "not necessarily contrary to the principle of proportionality."⁴³

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In order to assess whether proportionality is guaranteed when a threshold refers to a maximum penalty, the CJEU considers that two things must be ensured. First, it is necessary to verify whether the legislative provision generally targets "access to retained data [...] without specifying the nature of this data."⁴⁴ The Court believes that if it is not specified in the provision which data is accessed and this is left to the discretion of the authorities requesting access, it is possible that the measure in question does not limit itself to offenses.

38 Ibid.,

39 Ibid.,

40 Ibid.,

41 Ibid.

42 Ibid.,

43 Ibid.,

44 Ibid.,

point 50.

point 54.

point 55.

point 57.

point 58.

point 59.

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****Graves.**** Indeed, if the authority limits itself to requesting access to data that does not allow for

precise conclusions about the privacy of the individuals concerned, such access cannot be classified as serious and is possible for so-called minor offenses.

46. It follows that, secondly, a jurisdiction or an independent administrative entity involved in the prior control must assess the degree of seriousness of the interference with privacy in relation to the seriousness of the offense. When it emerges from this prior control that the degree of interference with privacy is not proportionate to the degree of the offense, the jurisdiction or administrative authority "must be empowered to refuse or restrict this access" because this entity "must be able to ensure a fair balance between, on the one hand, the legitimate interests related to the needs of the investigation in the fight against crime and, on the other hand, the fundamental rights to respect for privacy and the protection of personal data of the individuals whose data is subject to access."

47. To the extent that the bill under review intends to delineate serious crime from minor crime by reference to a maximum penalty threshold, the criteria set forth by the CJEU must be taken into consideration. However, since this CJEU jurisprudence is subsequent to the submission of the bill, it would be wise to review the proposed legislative measures and align them, if necessary, with the requirements of the CJEU. Regarding the established threshold, it can, as already mentioned, be questioned whether it is sufficiently high. Then, concerning the principle of proportionality, it is necessary to verify for each measure individually whether the criteria raised by the CJEU are provided for.

48. The CNPD also wishes to draw the legislator's attention to Regulation (EU) 2018/1240 of the European Parliament and of the Council of September 12, 2018, establishing a European Travel Information and Authorization System (ETIAS) and amending Regulations (EU) 1077/2011, (EU) 515/2014, (EU) 2016/399, (EU) 2016/1624, and (EU) 2017/2226, which in its Article 3.1, point 16 defines serious criminal offense as "an offense that corresponds to or is equivalent to one of the offenses referred to in Article 2, paragraph 2, of Framework Decision 2002/584/JHA, if it is punishable under national law by a penalty or a measure of deprivation of liberty of a maximum duration of at least three years." The CNPD therefore wonders whether this definition could serve as a source of inspiration for the bill under review.

49. Next, regarding the scope of the legislative measure providing for targeted retention, the CJEU requires that it be provided for in national law and limited by objective and non-discriminatory criteria. However, it should be noted that the current wording of Article 24-3.1

****45 Ibid.****

****46 Ibid., point 60.****

****47 Ibid., point 61.****

****48 Judgment of April 5, 2022, Commissioner of An Garda Síochána e.a., C-140/20, EU:C:2022:258, point 76.****

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****Paragraph 3 of the CPP**** limits itself to providing that the written and reasoned decision of the public prosecutor contains

"b) the precise indication of one or more of the following elements: the person(s), the means of communication, or the locations that are subject to conservation." The provision does not contain criteria allowing for the exact delimitation of the persons, locations, or means of communication to be targeted by the conservation.

50.

Insofar as the future Article 24-3 of the CPP provides for targeted conservation, the CNPD wonders whether it should not contain criteria allowing for the delimitation of the geographical areas or persons that may be targeted by the measure, as recommended by the CJEU or the ECHR. The authors of the draft law could have drawn inspiration from the elements provided by the Court in its successive

rulings⁴⁹ as well as from the criteria set out in the new Article 5bis of the Telecom Law.

51.

The Court further clarifies that apart from delimiting the persons or areas targeted by the measure, “other criteria, objective and non-discriminatory, may come into play to ensure that the scope of a targeted conservation is limited to what is strictly necessary and to establish a link, at least indirect, between serious criminal acts and the persons whose data is conserved. That being said, Article 15, paragraph 1, of Directive 2002/58 concerning legislative measures of the Member States, it is for them and not for the Court to identify such criteria, it being understood that there can be no question of reinstating, by this means, a generalized and indiscriminate conservation of traffic data and location data”⁵⁰. Therefore, there may potentially be other criteria not enumerated by the CJEU that could serve to delimit the extent of the measure.

52.

Regarding the categories of data that may potentially be conserved, the future Article 24-3.1, paragraph 2 of the CPP provides that a grand-ducal regulation “determines the categories of traffic data that may serve for the investigation, detection, and prosecution of the offenses mentioned above.” The CNPD aligns itself with the observations of the State Council on this matter⁵¹. It adds that the case law of the CJEU states that for targeted conservation, it is up to the law to contain the objective and non-discriminatory criteria that allow for the determination of which categories of data may be conserved. It is therefore not sufficient to set the categories of data that may be collected; it is also necessary to provide criteria based on which the data that may be collected is limited to what is strictly necessary.

53.

Furthermore, it is not clearly indicated in the provision that the grand-ducal regulation referred to corresponds to that initially adopted based on Article 5 of the Telecom Law, namely the

49 See in this regard, for example, the judgment of September 20, 2022, *SpaceNet and Telekom Deutschland* C-793/19 and C-794/19, EU:C:2022:702, paragraphs 104 to 113.

50 Judgment of April 5, 2022, *Commissioner of An Garda Síochána et al.*, C-140/20, EU:C:2022:258, paragraph 83.

51 See the opinion of the State Council of January 23, 2024, doc. parl. 8148/05, pp. 4 and 5.

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Grand-Ducal Regulation of July 24, 2010, determining the categories of personal data generated or processed in the context of the provision of electronic communications services or public communications networks. Like the Public Prosecutors of the District Court of Luxembourg and Diekirch in their joint opinion, the CNPD believes that it should be clear from reading Article 24-3 of the CPP which Grand-Ducal Regulation is referred to.

54. Regarding the Grand-Ducal Regulation itself, the CNPD is of the opinion that its wording should be adapted to the new regime. The wording of Article 3 of the said regulation still reflects the logic of a generalized and undifferentiated legal obligation to retain the listed data. However, the CNPD believes that the Grand-Ducal Regulation should contain an exhaustive list of data that constitutes traffic or location data, from which the State Prosecutor must choose based on objective and non-discriminatory criteria provided by law those that are necessary to achieve his objective.

55. In the same vein, it is worth questioning why the authors chose to include unsuccessful calls in paragraph 1, subparagraph 2. Indeed, already in 2010, when this concept was introduced in the Telecom law, the Council of State noted that this specification was superfluous because “it does not matter whether a call is successful or unsuccessful; it constitutes traffic data.”

56. Furthermore, as explained by the Public Prosecutors of the District Court of Luxembourg and Diekirch in their joint opinion, it remains to clarify whether the existing judicial review for the order of the State Prosecutor complies with the requirements of the CJEU or the ECHR in this matter.

57. Next, regarding the retention period, Article 24-3 of the CPP provides for a duration of 6 months, extendable if necessary. However, it should be noted that the draft law does not provide for a duration of application of the measure. It is therefore impossible to determine the moment from which the 6-month retention period should be counted. The CNPD consequently wonders whether the provision should not be supplemented by a duration of application of the measure, thus specifying the period during which operators and providers...

Joint Opinion of the Public Prosecutors of the District Court of Luxembourg and Diekirch of April 13, 2023, doc. part. n°8148/03, p.2.

Opinion of the Council of State on draft law n°6113 amending Articles 5 and 9 of the amended law of May 30, 2005, concerning the protection of privacy in the electronic communications sector and Article 67-1 of the Code of Criminal Procedure, doc. part. 6113/06, p.3.

Joint Opinion of the Public Prosecutors of the District Court of Luxembourg and Diekirch of April 13, 2023, doc. part. n°8148/03, p.3.

Judgment of April 5, 2022, Commissioner of An Garda Síochána e.a., C-140/20, EU:C:2022:258, point 85, and cited case law.

See ECHR judgment of January 11, 2022, *Ekimdzhev and others v. Bulgaria*, point 301.

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must proceed with the retention. Once the duration of the measure expires, the retention period for the data begins to run.

58. Regarding the actual retention period, namely 6 months extendable, the CNPD regrets that the authors of the draft law did not provide an explanation regarding the choice made. It is therefore unable to assess the proportionality of the chosen duration. The CNPD also aligns itself with the Council of State. The High Corporation indeed raises that the provision "is also a source of legal uncertainty given that an extension of a deadline, unlike its renewal, does not provide a precise limit to the measure, thereby resulting in imprecision regarding its duration."

59. Concerning the destruction of data at the end of the retention period provided for in paragraph 2 of the new article 24-3 of the CPP, it should be noted that the provision is confusing. Indeed, it seems that this provision reflects an obligation for operators and providers in that they must destroy the data once the retention period has expired. However, as article 24-3 of the CPP frames a preliminary investigation measure at the disposal of the public prosecutor, it does not naturally follow from the text that the obligation of destruction is directed at operators and providers.

60. Furthermore, it is necessary to question the exception to the principle of destruction introduced by the second part of the single sentence constituting paragraph 2 of article 24-3 of the CPP. Thus, the data retained under article 24-3 of the CPP to which the competent authorities have accessed or which they have preserved are not destroyed. This raises the question of the ultimate retention period for the data that will nevertheless be retained. Moreover, the CNPD questions the reason for this additional retention. If the competent authorities have preserved the retained data useful for the investigation, what is the reason for operators and providers to retain them beyond the initial duration? The same applies to the data they have accessed but deemed not useful to preserve. Why must operators and providers retain them?

61. Additionally, article 24-3 of the CPP in its current wording does not contain any indication or

reference to the provision(s) governing access to the retained data. The CNPD aligns itself with the observation of the Public Prosecutors of the District Court of Luxembourg and Diekirch in their joint opinion that a reference to article 67-1 of the CPP, which according to the authors of the draft law constitutes the basis for access, should be introduced.

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62.

Similarly, the CNPD questions the renewal provided for in Article 24-3.1 paragraph 3 point e) of the CPP. Is it not rather a renewal of the duration of application of the measure rather than the duration of retention of the data stored by the operators and providers? A clarification in this regard would be desirable.

63.

Furthermore, like the Public Prosecutor's Office⁵⁹ and the Council of State⁶⁰, the CNPD wonders what formal and substantive conditions should be met in order to obtain an extension of this deadline.

64.

Finally, Article 24-3.1 paragraph 4 of the CPP provides that in case of emergency, the State Prosecutor may verbally order the retention measure and must subsequently confirm it in writing as soon as possible in the form provided for in paragraph 3. It is worth questioning whether it would not be useful to provide a specific maximum timeframe for the State Prosecutor to confirm his oral decision.

2. The retention measure of Article 67-1 of the Code of Criminal Procedure

65.

According to the explanatory memorandum, “[t]he obligation to retain traffic and location data related to electronic communications was introduced into Luxembourg legislation by the law of May 30, 2005 concerning the protection of privacy in the communications sector.” According to the explanatory memorandum, “[n]ational operators are therefore required to retain traffic and location data as defined in Articles 5 and 9 of the Telecom Law, and access to this data is guaranteed to the investigating judge by Article 67-1 of the Code of Criminal Procedure [...]”

66.

Article 67-1 of the CPP thus seems to govern only access to the retained data and not the retention of the data itself. However, the parliamentary works of the law that introduced Article 67-1 into the Code of Criminal Procedure explain that the tracking measure “can target both past communications and future communications”⁶¹. The Council of State had raised in its opinion at the time that tracking “should only aim at obtaining already transmitted call data”⁶², notably so that tracking could not be confused with eavesdropping and seen as a kind of “mini-eavesdropping.” Although the parliamentary commission specifies that telephone eavesdropping occurs in real time, particularly to intercept communications and record their content, and that in the context of tracking “it is simply noted that there has been a call and an attempt is made to locate both the origin and the destination of the call without it being possible to know its content - nor even, as...

⁵⁹ Opinion of the Public Prosecutor's Office of March 13, 2023, doc. pari. n°8148/02, p.6.

⁶⁰ See opinion of the Council of State of January 23, 2024, doc. pari. 8148/05, p. 5.

⁶¹ See parliamentary works of bill n°4889, deposit document p.4.

⁶² Opinion of the Council of State of March 19, 2002, doc. pari. n°4889/01, p.3.

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// As previously noted, the "true author"⁶³, it remains that the question of whether Article 67-1 of the CPP could serve the investigating judge to order the retention of data has not found an explicit answer.
67.

The provision in question allows the investigating judge to proceed "to identify the calling data of telecommunications means from which or to which calls are made or have been made"⁶⁴. The chosen terminology seems to indicate that the investigating judge can order the retention of data that will still be generated. The common opinion of the Public Prosecutors of the District Court of Luxembourg and Diekirch⁶⁵ supports this view. If this is the case, the investigating judge can therefore, through Article 67-1 of the CPP, order the retention of traffic and location data.

68.

In light of the explanatory memorandum, it seems that the authors of the draft law did not approach the article from this angle, but only from the perspective of access to retained data. The CNPD therefore wonders whether the article should not be analyzed and, if necessary, adapted to meet the requirements of the CJEU regarding targeted data retention measures.

69.

Thus, regarding the possibility of ordering the retention of data, the article must aim for the appropriate purpose, contain the conditions and criteria to delineate the scope, and provide for adequate application and retention periods.

70.

Article 67-1 of the CPP is already applicable for acts that carry a criminal penalty or a correctional penalty whose maximum is equal to or greater than one year of imprisonment. The CNPD limits itself to referring to its observations raised in points 39 to 47 of this opinion.

71.

The CJEU also requires that there be criteria in the law to limit the scope of retention measures. According to the CJEU, the retention measure may be "limited either to data concerning a specific time period and/or a geographical area and/or to a circle of persons who may be involved in one way or another in a serious offense, or to persons who could, for other reasons, contribute, through the retention of their data, to the fight against serious crime"⁶⁶. It must be noted that the amendments made to Article 67-1 of the CPP do not provide for such criteria, leading the CNPD to wonder whether the requirements of the CJEU are being met.

63 Report of the Legal Commission of October 2, 2002, doc. pari. 4889/03, p.3.

64 Article 67-1, paragraph 1w, point 1 of the CPP in its current version.

65 Joint opinion of the Public Prosecutors of the District Court of Luxembourg and Diekirch of April 13, 2023, doc. pari. n°8148/03, p.4.

66 Judgment of October 6, 2020, *La Quadrature du Net et al.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791, point 144.

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72.

The provision under review contains a duration of application for the measure that must be specified by the investigating judge, without exceeding one month. However, it fails to set a duration for the retention of traffic and location data by operators and providers. It is nonetheless essential to provide for such a retention period, which must also be limited to what is strictly necessary in relation to the intended purpose.

73.

The general question also arises as to whether the retention period should be established by the provisions governing retention measures. Indeed, the retention period for data is an obligation that

ultimately addresses the operators and providers. Would it not therefore be more logical to provide for a provision on the retention periods of data ordered by the courts, which would be appropriate based on the measure ordered in the Telecom law? In any case, it must clearly follow from the text that the retention period is directed at the operators and providers.

74.

Lastly, the CNPD wonders whether a separation of retention and access measures would not be a feasible alternative. This is in an effort to avoid any confusion between the measures and to make the rules surrounding these two measures more readable.

3. The retention measure of the new Article 7-1 of the SRE Law

75.

Article 3 point 2° of the draft law introduces a new Article 7-1 into the amended law of July 5, 2016, concerning the reorganization of the Intelligence Service (hereinafter the "SRE Law"). This article allows the SRE to order operators and providers "the generalized and undifferentiated retention of data relating to traffic, including the identification of correspondents and all forms of communications or the location of the origin or destination of these communications, generated or processed by them in the context of providing the relevant communication services."

76.

The CJEU admits generalized and undifferentiated retention of traffic and location data in specific situations. In this regard, it explains that "national security remains the sole responsibility of each Member State. This responsibility corresponds to the paramount interest of protecting the essential functions of the State and the fundamental interests of society and includes the prevention and repression of activities that could seriously destabilize the fundamental constitutional, political, economic, or social structures of a country, and in particular, directly threaten society, the population, or the State as such, such as, in particular, terrorist activities."⁶⁷

"Judgment of October 6, 2020. La Quadrature du Net et al., C-511/18, C-512/18 and C-520/18, EU:C:2020:791, paragraph 135.

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77.

The Court therefore acknowledges that "the importance of the objective of safeguarding national security [...] surpasses that of the other objectives referred to in Article 15, paragraph 1, of Directive 2002/58, notably the objectives of combating crime in general, even serious crime, as well as safeguarding public security. Indeed, threats such as those referred to in the previous point are distinguished, by their nature and particular gravity, from the general risk of tensions or disturbances, even serious ones, to public security. Subject to compliance with the other requirements set out in Article 52, paragraph 1, of the Charter, the objective of safeguarding national security is therefore capable of justifying measures involving more serious infringements of fundamental rights than those that could be justified by these other objectives."⁶⁸

78.

According to the CJEU, the general and indiscriminate retention of data related to traffic and location, which is a particularly serious interference with individuals' privacy, is therefore possible if the stakes involve national security. However, the measure must be framed. Thus, the Court considers that the serious threat must be "real and current or foreseeable."⁶⁹ Although the new Article 7-1.1 of the SRE law exactly reproduces these terms, it does not specify on what criteria and conditions a threat is considered to be real and current or foreseeable. The CNPD therefore wonders whether these criteria should not be provided for by law, given that such retention constitutes a particularly serious

interference with the privacy of the individuals concerned and that under Article 52 of the Charter of Fundamental Rights of the European Union (hereinafter the "Charter") and Article 8.2 of the Convention on Human Rights, any limitation on the exercise of rights and freedoms must be provided for by law. Even if the ECHR admits a certain flexibility in the foreseeability of the law regarding secret surveillance to preserve national security, it remains that "[...] the risk of arbitrariness is clearly evident where an executive power is exercised in secret. The existence of clear and detailed rules regarding the interception of telephone conversations is therefore essential, especially as the technical means available continue to improve. The law must be drafted with sufficient clarity to adequately indicate to all in what circumstances and under what conditions it empowers the public authority to take such secret measures."⁷¹

79.

In addition to the provisions of the Charter, those of the Constitution also apply. As a reminder, it is indeed the rights provided for in Articles 20 (private life), 30 (inviolability of communications), and 31 (data protection) that are at stake in the context of this draft law. However, in accordance with Article 37 of the Constitution, "[a]ny limitation on the exercise of public freedoms must be provided for by law [...]."

68 /d, point 136.

69 /6/d, point 137.

70 See points 16 to 19 of this opinion.

71 See ECHR judgment of December 4, 2015, Roman Zakharov v. Russia, point 229.

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80.

Based on the findings above, the CNPD further questions whether the provision is sufficiently precise regarding the scope of retention. The use of the term "generalized and indiscriminate retention" does not, by itself, clarify which data, which areas, which individuals, or even which means of communication are being referred to. According to its understanding, "generalized and indiscriminate retention" refers to the storage of all traffic and location data generated by all means of communication for nearly the entire population across the entire territory of the country.

81.

Regarding, in particular, the categories of data concerned, the predictability of the law may be called into question. Under the current regime, the Grand-Ducal Regulation of July 24, 2010, determining the categories of personal data generated or processed in the context of the provision of electronic communications services or public communications networks, describes which data will be retained. The categories of retained data are therefore known.

82.

However, as the new retention regime available to the SRE refers solely to "the generalized and indiscriminate retention of data related to traffic, including the identification of correspondents and all forms of communications or the location of the origin or destination of these communications, generated or processed by them in the context of the provision of the relevant communications services," it does not sufficiently clarify from the text which data is being referred to. The SRE law does not contain a definition of what is meant by traffic or location data, and the definitions provided by the Telecom law seem to be insufficient as well.

83.

As it raised in points 53 and 54 of this opinion, the CNPD believes that at least one Grand-Ducal Regulation should precisely define which categories of data constitute all traffic and location data.

84.

Regarding the retention period, the CNPD again notes a confusion between the retention period of the data and the duration of the application of the measure. Indeed, the six-month period provided for in the new Article 7-1 (4) seems more like a duration of application of the measure than an actual retention period. It would therefore be appropriate to add a data retention period, as operators and providers need to know how long they must retain the data once the measure comes to an end.

72 Article 2 of the Telecom law:

(f) "traffic data": all data processed for the purpose of routing a communication through an electronic communications network or for its billing;

(g) "location data": all data processed in an electronic communications network indicating the geographical position of the terminal equipment of a user of a publicly accessible electronic communications service;

(...

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85.

Article 7.2 of the SRE law continues to regulate access to data retained under Articles 7-1 and 7-2 of the SRE law. The CNPD welcomes the explicit reference to the article governing access to the data being included.

4. Measures for the retention of the new Article 7-2 of the SRE law

86.

Article 3 point 3° of the draft law introduces a new Article 7-2 into the SRE law allowing it to impose two types of measures: rapid retention and targeted retention of traffic and location data.

87.

As raised in points 31 and following of this opinion, the measures of rapid retention and targeted retention do not cover the same situations and are not subject to the same requirements. It is therefore appropriate to assess the two measures separately.

a. Targeted retention of traffic and location data

88.

Regarding the scope of the targeted retention measure, the CJEU requires that the law provides objective and non-discriminatory criteria that allow for the determination of the categories of data that may be collected.

89.

The draft law merely refers to Article 4 of the SRE law, which enshrines the general principle of proportionality and necessity of the measures to be taken by the SRE. The wording of Article 4 of the SRE law does not seem sufficiently precise to limit the scope of the measure, as it only enshrines a general principle without containing criteria to limit the targeted retention measure to individuals, locations, or means of communication. The future Article 7-2.2 of the SRE law also does not contain such criteria, as it merely states that the injunction mentions the individuals, locations, or means of communication as well as the nature of the data to be retained.

90.

In light of the case law of the CJEU, as well as the requirements of the ECHR and the Constitution as raised in points 78 and 79 of this opinion, the CNPD believes that the law should provide criteria to delineate the scope of the retention measure.

91.

As already raised, notably in point 84 of this opinion, there is confusion between the duration of data

retention and the duration of the application of the measure. The targeted retention measure extends over a certain period during which operators and providers are required to store traffic and location data. Once this period has expired, it is necessary to provide for the duration during which operators and providers must then retain the retained data. The first period corresponds to

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the duration of application of the measure, while the second consists of the actual retention period.

92. The duration of six months provided for in the new Article 7-2.3 of the SRE law seems to be the duration of application of the measure. The article should therefore be supplemented by a retention period.

b. The rapid retention of traffic and location data

93. The requirements of the CJEU regarding the scope of the rapid retention measure are the same as those concerning targeted retention. The CNPD therefore limits itself to referring to its observations in points 88 and following of this opinion.

94. Regarding the retention period, it should be noted that, unlike targeted retention, it is sufficient to retain a single duration for this measure. Indeed, since it is a one-off measure on data that has already been generated, it is sufficient to specify how long the data should be retained. Nevertheless, it is useful to note that the CJEU requires that "in order to ensure that the interference resulting from such a measure is limited to what is strictly necessary, it is necessary, on the one hand, for the retention obligation to concern only the traffic and location data that may contribute to the elucidation of the serious criminal offense or the national security breach in question. On the other hand, the retention period of the data must be limited to what is strictly necessary, although it may be extended when the circumstances and the objective pursued by the said measure justify it." The CNPD, however, finds itself unable to assess the proportionality of the duration retained as the authors of the draft law have not provided explanations in this regard.

95. According to the CJEU, it is necessary to include in the provision surrounding rapid retention the purpose for which this retention may take place. The CJEU explains in this regard that "to the extent that the purpose of such rapid retention no longer corresponds to those for which the data were initially collected and retained, and where any processing of data must, under Article 8, paragraph 2, of the Charter, meet specific purposes, Member States must specify in their legislation the purpose for which rapid retention of data may take place. Given the serious nature of the interference with the fundamental rights enshrined in Articles 7 and 8 of the Charter that such retention may entail, only the fight against serious crime and, a fortiori, the safeguarding of national security can justify such interference."

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96.

Indeed, the rapid conservation measure targets data that has already been generated and retained, for example for billing purposes. With the implementation of the measure, the purpose of "retention for reasons of national security" is added to this initial purpose. However, according to the CJEU, it is

necessary for national legislation to provide for this new purpose for operators and providers.

97.

This differs from targeted retention, which only takes effect for data to be generated in the future and for which there is a dual purpose from the moment of collection. The significant differences in the requirements surrounding targeted retention and rapid retention lead the CNPD to question whether it would be useful to separate the two measures.

B. Measures of retention arising from a legal obligation

1. The retention measures of the new Article 5bis of the Telecom Law

98.

According to the CNPD's understanding, the new Article 5bis intends to introduce two retention measures. On one hand, a targeted retention of traffic and location data limited based on geographical areas (a). On the other hand, it also introduces a generalized and undifferentiated retention (b). Since these are not one-off measures but rather a retention obligation that falls on operators and providers under specific circumstances, this retention measure should not be ordered but arises directly from the law.

a. The targeted retention measure of the new Article 5bis of the Telecom Law

99.

The retention measure provided for in the new Article 5bis.1 of the Telecom Law is delineated based on geographical criteria set out in paragraph 2 point 1° of the same article. It therefore appears to be a targeted retention measure.

100.

As a reminder, the CJEU acknowledges the possibility of providing "for the purposes of safeguarding national security, combating serious crime, and preventing serious threats to public security, a targeted retention of data relating to traffic and location data that is delineated, based on objective and non-discriminatory elements, according to categories of persons concerned or by means of a geographical criterion, for a temporally limited period strictly necessary, but renewable." Thus, the retention measure must meet certain criteria set forth by the CJEU.

75 Judgment of October 6, 2020, *La Quadrature du Net* e.a., C-511/18, C-512/18 and C-520/18, EU:C:2020:791, paragraph 168.

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It should be noted that the provision under review complies with the requirements of the CJEU regarding the limitation of the objectives for which targeted retention may occur. However, as the provision only mentions "serious crime" without defining, for example, by a threshold such as that retained in the new article 24-3 of the CPP, what is meant by this notion, the CNPD wonders whether clarifications should be made in this regard.

102.

Regarding the determination of the categories of data that may be collected, the CNPD refers to its observations raised in points 53 to 55 of this opinion.

103.

Furthermore, it notes that the limitation of retention is based on certain geographical criteria proposed by the CJEU in its judgments. These areas will be defined by the High Commissioner for National Protection in a Grand-Ducal regulation upon the proposal of an advisory commission. The CNPD wishes to remind that Article 8.2 of the European Convention on Human Rights provides that "[t]here shall be no interference by a public authority with the exercise of this right except such as is provided for by law and is necessary in a democratic society in the interests of national security, public safety, the economic well-being of the country, the defense of order, and the prevention of criminal offenses,

the protection of health or morals, or the protection of the rights and freedoms of others.” Moreover, it should be recalled that Article 37 of the Constitution requires that “[a]ny limitation on the exercise of public freedoms must be provided for by law [...]”

104.

Concerning the condition that the measure must be necessary in a democratic society, the ECHR specifies that adequate and effective safeguards must exist to prevent arbitrariness and abuse. Thus, the ECHR considers that the existence of a control over the necessity of the measure is such a safeguard and that the assessment must take into account all the circumstances of the case in question.

105.

The CNPD therefore welcomes the observations of the Council of State made regarding the Grand-Ducal regulation, particularly because the commentary on the articles specifies that the extent of the perimeter of each area will be set by Grand-Ducal regulation, which will not necessarily be published. Furthermore, as the advisory commission only has an advisory role and its opinion is not binding on the High Commissioner for National Protection, the CNPD questions how the control of necessity will be carried out. Without any other means of effective control, the CNPD considers publication to be an important aspect in the context of assessing the necessity of a measure.

76 See judgment of October 6, 2020. *La Quadrature du Net et al.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791 and judgment of April 5, 2022, *Commissioner of An Garda Síochána et al.*, C-140/20, EU:C:2022:258.

77 See opinion of the Council of State of January 23, 2024, doc. pari. 8148/05, p.8.

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106.

Regarding the review of geographical areas, the commentary on the articles indicates that the CJEU requires that the areas must be adaptable, particularly when the conditions that justified their retention change. The CNPD, however, questions the three-year period set for conducting this review. The authors of the draft law do not explain why this timeframe seems appropriate, making it impossible to assess this choice. Furthermore, the CNPD believes that a procedure should be established to allow for an early review in case conditions change, justifying the adaptation of the area's scope, or even the abandonment of surveillance in a certain area.

107.

Still concerning the scope of the measure, paragraph 3 of article 5bis intends to introduce the obligation for operators and providers to continue retaining traffic and location data of individuals in transit, that is, individuals who, at the time of a communication, are entering or exiting such an area. The CNPD can understand the intention of the authors of the draft law, but it wishes to caution that such an obligation should not lead to generalized and indiscriminate retention of data on almost the entire population and across the entire territory. Retention must remain the exception.

108.

Article 5bis sets a retention period for the data of six months from the communication. The commentary on the articles limits itself to justifying this choice by the "concern for unification and harmonization of retention periods." The CNPD believes that this justification is not sufficient to assess the proportionality of the duration chosen.

109.

Moreover, article 5bis in its current wording does not contain any indication or reference to the provisions governing access to the retained data. The CNPD reminds that access can only occur in

compliance with the hierarchy of objectives. Indeed, the CJEU explains that data retained for the purpose of national security cannot be accessed for purposes of combating serious crime. The opposite, however, seems legitimate. Since the article under review concerns retention for two objectives, namely the fight against serious crime and the preservation of national security, precision regarding the articles regulating access could prove useful. The separation of the measures into two distinct articles could also facilitate the understanding of access.

b. The generalized and indiscriminate retention measure of the new article 5bis of the Telecom law

78 See, for example, judgment of April 5, 2022, Commissioner of An Garda Síochána e.a., C-140/20, EU:C:2022:258, paragraph 82.

79 See judgment of September 20, 2022, SpaceNet and Telekom Deutschland C-793/19 and C-794/19, EU:C:2022:702, paragraph 128.

80 Ibid.

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110.

The new article 5bis.2 point 2° establishes the obligation for operators and providers to retain traffic and location data in a generalized and undifferentiated manner if "the level of threat determined by the coordination group for the fight against terrorism (GCT) according to the assessment referred to in the government plan for national vigilance against the threats of terrorist actions (plan .. VIGILNAT) is at least level 3 and covers the entire territory."

111.

The CNPD wishes to remind that the generalized and undifferentiated retention of traffic and location data is only possible for the purposes of safeguarding national security. However, as the first paragraph of the article also states the objective of combating serious crime, there remains some uncertainty regarding the purpose of the generalized and undifferentiated retention. Even if one can imagine that the conditions triggering this retention, namely that the threat level is at level 3 according to the VIGILNAT plan and covers the entire territory, are related to the objective of national security, this is not clearly stated in the text. The CNPD therefore wonders whether it would not be useful to separate the two measures and clarify that such generalized and undifferentiated retention can only be carried out for the purpose of national security. This is also in light of the respect for the hierarchy of objectives explained in point 109 of this opinion.

112.

Regarding the scope of the measure, and in particular the categories of data concerned, the CNPD has no further observations other than those it has already raised in points 53 to 55 of this opinion, namely that it must be clear from the legislation which data may be collected.

113.

Without clarification regarding the moment that triggers the duration of the retention measure, the CNPD believes that it is the information from the High Commissioner for National Protection. However, the text does not provide for either a duration of the measure or a procedure to review the necessity of the measure or to terminate the collection in case it is no longer necessary. The CNPD therefore wonders whether the principle of necessity is respected in this regard.

114.

As mentioned in point 108 of this opinion, the CNPD finds itself unable to assess the duration of retention chosen.

115.

Finally, the CNPD wishes to reiterate its observations regarding the futility of a reference to the provision(s) governing access to the retained data.

2. The retention measure of the new article 10ter.1 of the Telecom law 116.

As explained by the commentary on the articles, the CJEU recognizes the possibility for Member States to provide for a generalized and undifferentiated retention of data related to the CNPD. Opinion of the National Commission for Data Protection regarding draft law no. 8148 on the retention of personal data and amending: 1° the Code of Criminal Procedure; 2° the amended law of May 30, 2005 concerning the protection of privacy in the electronic communications sector; and 3° the amended law of July 5, 2016 reorganizing the State Intelligence Service.

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****On the Civil Identity of Users of Electronic Communication Means.** This is particularly because "these data do not, on their own, allow for the knowledge of the date, time, duration, and recipients of the communications made, nor the places where these communications took place or the frequency of such communications with certain individuals over a given period, such that they provide, apart from the contact details of these individuals, such as their addresses, no information on the given communications and, consequently, on their private life." *******

****It follows that the interference with privacy cannot be classified as serious.****

117. According to the commentary on the articles, "given the increasing convergence of electronic communication services and the extension of this latter notion, as well as the notion of operator to 'OTT' actors, following the transposition of the European electronic communications code, it is proposed to adapt the list of identification data to be retained beyond the data referred to in Article 10bis of the Telecom Law." Thus, Article 10ter.1 would only be a complement to Article 10bis. If this is the case, the CNPD does not understand why Article 10quaterbis has not been adapted, especially since the latter contains references to the articles allowing access to the retained data.

118. Furthermore, point 1° of Article 10ter imposes on operators and providers the obligation to retain the data they hold under Article 10quaterbis. Is this obligation not superfluous simply because operators and providers already have this obligation and that access to this data is governed by Article 10bis? The interaction between the two articles does not seem entirely clear and is prone to confusion.

119. Next, the CNPD questions the use of the verb "generate" in the introductory part of paragraph 1, particularly in relation to the collection of data held based on Article 106/s as well as the IMEI and the IMSI. Are operators and providers required to generate this data for their subscribers or users? Or must they also retain the data from Article 10quaterbis (name, first name, place of residence, etc.), the IMSI, and the IMEI of the recipients of the communication (for example, the called party)? It is not clearly stated in the text that this data refers solely to the subscriber/user. In the event that not only the data of subscribers/users, but also...

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also those of the recipients of the communication must be preserved, the CNPD wonders whether this preservation would not go beyond the limits set by the CJEU.

120. Furthermore, the CNPD notes that certain concepts used in this article are not defined. It is therefore uncertain what the article concretely aims at. Firstly, the concepts of "subscription data" and "identification data" are not defined. It is thus impossible to know which data is being referred to. The notion of "end user" is also not defined. Is it referring to the definition retained in Article 2, point 14° of the law of December 17, 2021, on electronic communications networks and services? Finally, the concepts of "IP addresses used for subscription or activation" as well as "source port" would merit

definition in order to know which data will be concretely collected.

121. Given that the provision lacks clarity regarding the data that will be processed, as well as concerning the interaction with Article 10ter, the CNPD is unable to assess whether the data retained are not "likely to allow for precise, or even very precise, conclusions regarding the private life of the individuals whose data have been retained"⁸⁵ as required by the CJEU.

3. The data retention measure of the new Article 10ter.2 of the Telecom Law

122. According to the CJEU, "the generalized and indiscriminate retention of only the IP addresses assigned to the source of a connection does not appear, in principle, to be contrary to Article 15, paragraph 1, of Directive 2002/58, read in light of Articles 7, 8, and 11 as well as Article 52, paragraph 1, of the Charter, provided that this possibility is subject to strict compliance with the material and procedural conditions governing the use of this data"⁸⁶. The Court further adds that "[i]n view of the serious nature of the interference with the fundamental rights enshrined in Articles 7 and 8 of the Charter that this retention entails, only the fight against serious crime and the prevention of serious threats to public security are capable, like the safeguarding of national security, of justifying this interference"⁸⁷.

123.

It should be noted that the provision under review seems to respect the CJEU's requirements regarding the limitation of the objectives for which targeted retention may take place. However, as the provision limits itself to mentioning "serious crime" without defining, for example, by a threshold such as that retained in the new Article 24-3 of the CPP, what is to be understood by serious crime, it raises concerns.

⁸⁵ See judgment of October 2, 2018, *Ministerio Fiscal* C-207/16, EU:C:2018:788, paragraph 60.

⁸⁸ See judgment of October 6, 2020, *La Quadrature du Net e.a.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791, paragraph 155.

⁸⁷/ft/d, paragraph 156.

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****Understanding this notion, the CNPD wonders whether it should provide clarifications in this regard.****

124. In this respect, it is necessary to take into account the recent case law of the CJEU that did not exist at the time of the submission of the bill under review. This refers to the judgment of April 30, 2024, in the case of *La Quadrature du Net e.a.* (Personal Data and the Fight Against Counterfeiting), which contains observations regarding the possibility of providing for a generalized and indiscriminate retention of IP addresses assigned to the source for the purpose of combating criminal offenses in general.

125. The Court clarifies its position raised in point 122 of this opinion and explains that it "expressly based its conclusion on the serious nature of the interference with the fundamental rights enshrined in Articles 7, 8, and 11 of the Charter that such retention of IP addresses may entail." It adds that the serious interference arises from the fact that it is possible to carry out a comprehensive tracing of the browsing history of the individual concerned or to establish a detailed profile. According to the Court, such profiling or tracing is only possible if the various retained information, including IP addresses, is combined. Through this combination, it is then possible to draw precise conclusions about the private life of the individuals concerned.

126. It thus appears that it is not necessarily the generalized and indiscriminate retention of IP addresses assigned to the source that constitutes a serious interference with the private life of the individuals concerned, but rather the possibility of combining this data with other collected data. The CJEU specifies that "the obligation imposed on providers of electronic communications services, by a

legislative measure under Article 15, paragraph 1, of Directive 2002/58, to ensure the generalized and indiscriminate retention of IP addresses may, where appropriate, be justified by the objective of combating criminal offenses in general when it is effectively excluded that this retention could lead to serious interferences with the private life of the individual concerned due to the possibility of drawing precise conclusions about it, notably through the correlation of these IP addresses with a set of traffic or location data that would also have been retained by these providers."

127. The Court concludes that a "Member State that intends to impose on providers of electronic communications services an obligation of generalized and indiscriminate retention..."

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****Concerning IP addresses in view of achieving an objective related to the fight against criminal offenses in general, it must ensure that the conditions for the retention of this data are such as to guarantee that any combination of said IP addresses with other retained data is excluded, in compliance with Directive 2002/58, which would allow for drawing precise conclusions about the privacy of the individuals whose data would thus be retained.**92**

128. The Court indeed requires a strict separation between the different categories of retained data. This requirement evokes the image of several safes containing the different categories of data, preventing the data from being linked to each other. The Court further adds that national legislation must provide "clear and precise rules regarding the said retention conditions, which must meet strict requirements."93

129. In points 86 to 89, the CJEU provides clarifications regarding these conditions. Thus, the data must be retained separately, and from a technical standpoint, this separation must be watertight. A third requirement of the Court consists of establishing an efficient technical process that links the IP addresses with the retained civil identity data, with the aim of preserving the watertight separation. Lastly, the CJEU requires that the watertight separation be subject to regular oversight by a public authority. The CJEU concludes that when these conditions are met and it is not possible to combine data to draw precise conclusions about the privacy of the individuals concerned, a generalized and indiscriminate retention of IP addresses for the purpose of fighting criminal offenses in general is possible.

130. In light of the above, the CNPD believes that the provision under review should be revised to comply with the recent case law of the CJEU.

131. Furthermore, due to the lack of explanations in the commentary on the articles regarding the choice of the retention period selected, the CNPD finds itself unable to assess it.

132. Finally, it should be noted that the term "port" used at the end of the first paragraph is confusing. What exactly does it refer to? Is it the same "source ports of the connection" mentioned in paragraph 1CT? If so, should the terminology not be aligned?

****C. The guarantees surrounding retention by operators and providers****

92 Ibid., point 83.

93 Ibid., point 85.

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133.

Although conservation measures must be accompanied by guarantees regarding the possibility of their use, the CJEU also requires that the conservation itself by operators and providers be surrounded by safeguards against the risks of abuse and unlawful access.

134.

The CJEU indeed explains that "given the significant amount of traffic data and location data that may be continuously retained by a generalized and indiscriminate conservation measure, as well as the sensitive nature of the information that such data may provide, the mere retention of said data by electronic communications service providers entails risks of abuse and unlawful access."

135.

Thus, the Court notably requires that operators and providers irretrievably destroy the data at the end of the retention period, that they retain the data within the territory of the Union, that they ensure the full integrity and confidentiality of said data, and guarantee a particularly high level of protection and security through appropriate technical and organizational measures. Furthermore, it requires that Member States ensure oversight by an independent authority regarding compliance with the level of protection guaranteed by Union law concerning the protection of natural persons with regard to the processing of personal data.

136.

In this case, it is Article 2 points 3° and 8° of the draft law that is of interest in this regard as it amends Articles 5 and 9 of the Telecom Law.

137.

Regarding the irretrievable destruction advocated by the CJEU, the CNPD notes that both the amended version of Article 5 and that of Article 9 of the Telecom Law provide that traffic and location data are deleted or anonymized "as soon as they are no longer necessary for the transmission of a communication." There are exceptions to this deletion, notably in Articles 5.2 and 5.3 of the Telecom Law, which seem acceptable and do not raise particular observations from the CNPD. However, Articles 5.1 and 9.1 of the Telecom Law provide for another exception which, at first glance, seems logical but would nonetheless deserve clarification.

138.

Indeed, Article 9.1 provides that traffic and location data are deleted when they are no longer necessary for the transmission of a communication "except for accesses ordered by judicial authorities and by the ministerial committee of intelligence."

94 See judgment of October 6, 2020, *La Quadrature du Net e.a.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791, 119.

95 See judgment of April 8, 2014, *Digital Rights Ireland e.a.*, C-293/12 and C-594/12, EU:C:2014:238, paragraph 67.

* *Ibid.*, paragraph 68.

97 See judgment of December 21, 2016, *Tele2 Sverige and Watson e.a.*, C-203/15 and C-698/15, EU:C:2016:970, paragraph 123.

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for the State Intelligence Service acting within the framework of the powers conferred upon it by law to safeguard national security, to combat serious crime, and to prevent serious threats to public safety." The wording of Article 5.1 is similar.

139. The CNPD questions whether this part of the sentence should be understood as the logical consequence of the possibility for certain authorities to request the retention of data from operators and providers. In other words, is it merely a confirmation of the principle that retention measures can be implemented? If this is the case, it is nonetheless necessary to question the terms used. It is indeed unclear why the article states that "[...] except for accesses ordered by judicial authorities and by the ministerial committee of intelligence [...]". Should it not rather state "except for the data whose retention has been ordered [...]"?

140. The current wording indeed leaves doubt regarding the deletion of data whose retention has been ordered, mandated, or provided for by a legal text, and which have subsequently been accessed by the competent authorities. If the interpretation of the article were such that the data that have been accessed will not be deleted, this would be contrary to the case law of the CJEU.

141. Furthermore, the CNPD believes that a maximum retention period for this data should be established. This is particularly in relation to what has been raised in this opinion regarding several retention measures, namely that it is not clearly stated in the provisions how long the data must be retained by operators and providers, as there is a mix between the duration of the application of the measure and the duration of data retention.

142. Regarding the limitation of access to strictly necessary persons, the future Articles 5.4 and 9.4 of the Telecom Law seem to reflect this requirement of the CJEU. Oversight by an independent authority competent in data protection is also provided for.

143. However, it is worth questioning why the authors of the draft law did not include the other requirements of the CJEU, namely that operators and providers must retain data on the territory of the Union and ensure the full integrity and confidentiality of said data, and guarantee a particularly high level of protection and security through appropriate technical and organizational measures.

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144.

Lastly, it must be noted that no preservation measure contains guarantees for individuals subject to professional secrecy as defined in Article 458 of the Penal Code, as well as whistleblowers. The CJEU explains that "the retention of traffic data and location data for police purposes is likely, in itself, to infringe the right to respect for communications [...] and to have a deterrent effect on users' exercise of their freedom of expression, guaranteed by Article 11 of [the Charter]. Such deterrent effects may particularly affect individuals whose communications are subject, under national rules, to professional secrecy as well as whistleblowers [...]. Furthermore, these effects are all the more serious as the number and variety of retained data are high." The CNPD therefore regrets that the authors of the draft law did not provide guarantees for these categories of individuals.

II.

Legislative measures for access to data

145.

Once the data is retained, it is necessary to provide a second set of measures allowing the competent authorities to access the information. The CJEU clearly explains that it considers access by competent authorities to retained data to constitute an additional interference in the private life of the individuals concerned.

146.

Thus, and as the access measures correspond, just like the preservation measures, to a derogation from the principle of confidentiality, they must also comply with the requirements of the CJEU.

147.

Access measures must therefore "be subject to appropriate safeguards" and thus "provide clear and

precise rules indicating under what circumstances and under what conditions electronic communications service providers must grant access to the data to the competent national authorities. Likewise, a measure of this nature must be legally binding under domestic law." The Court further adds that "such national regulation must also provide for the material and procedural conditions governing the access of the competent national authorities to the retained data."

"See judgment of October 6, 2020, *La Quadrature du Net e.a.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791, paragraph 118.

100 See judgment of October 6, 2020, *La Quadrature du Net e.a.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791, paragraph 116 and judgment of October 2, 2018, *Ministerio Fiscal* C-207/16, EU:C:2018:788, paragraph 51.

101 See judgment of October 6, 2020, *La Quadrature du Net e.a.*, C-511/18, C-512/18 and C-520/18, EU:C:2020:791, paragraph 102.

102 See judgment of December 21, 2016, *Tele2 Sverige and Watson e.a.*, C-203/15 and C-698/15, EU:C:2016:970, paragraph 117.

103 Ibid.

104 Ibid., paragraph 118.

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148. The case law of the Court provides guidance on what a legislative access measure must contain. It requires, for example, that the legislation include criteria to limit the number of individuals who have access to the data. It further considers that "general access to all retained data, regardless of any link, at least indirect, with the pursued objective, cannot be regarded as limited to what is strictly necessary." It is therefore essential that the law contains "objective criteria to define the circumstances and conditions under which access to subscriber or registered user data must be granted to the competent national authorities. In this regard, access may, in principle, only be granted, in relation to the objective of combating crime, to data concerning individuals suspected of planning, committing, or having committed a serious offense or of being involved in any way in such an offense [...]"

149. Thus, in addition to the requirement that only strictly necessary individuals have access to the data, the Court demands that the law establish criteria and conditions determining in which cases the data may be accessed. Furthermore, the CJEU requires that there be at least an indirect link between the objective of combating crime and the individual whose data will be accessed. For this latter requirement, however, the Court admits a mitigation in cases of threats from terrorist activities. In this case, it is sufficient that objective elements demonstrate that the accessed information may contribute to the fight against such activities.

150. Regarding the objectives of access measures, the case law of the CJEU repeatedly states that, respecting the hierarchy of objectives, access to data "can, in principle, only be justified by the general interest objective for which this retention has been imposed on these providers. This is not the case if the importance of the objective pursued by access outweighs that of the objective that justified the retention." Thus, when data has been retained for national security safeguarding purposes, it cannot be accessed for serious crime fighting objectives. The reverse, however, would be admissible.

151. From a procedural standpoint, the CJEU requires that the access measure be subject to "prior control carried out either by a court or by an independent administrative entity, and that the decision of this court or entity follows a thorough examination of the circumstances of the case."

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****Reasoned request from these authorities presented, in particular, within the framework of procedures for prevention, detection, or criminal prosecution.****

152. The CJEU only accepts subsequent control in cases of duly justified urgency. The control must then take place as soon as possible. The Court explains in this regard that "subsequent control would not serve the purpose of prior control, which is to prevent access to the data in question that exceeds the limits of what is strictly necessary."

153. An additional guarantee against the risks of abuse that the CJEU deems important is "that the competent national authorities to which access to the retained data has been granted inform the persons concerned, within the framework of applicable national procedures, as soon as this communication is not likely to compromise the investigations conducted by these authorities." Thus, legislative measures must provide for such information to the persons concerned, which is effectively necessary for them to exercise their rights regarding data protection.

154. Finally, the CJEU raises the issue that the transmission by operators and data providers of traffic and location data to law enforcement authorities results in "deterrent effects on users' exercise of their freedom of expression, guaranteed by Article 11 of the Charter. Such deterrent effects may particularly affect individuals whose communications are subject, according to national rules, to professional secrecy as well as whistleblowers." It would therefore be desirable for a legislative access measure to provide guarantees regarding individuals subject to professional secrecy as well as whistleblowers.

155. Upon reading the draft law, it becomes clear that there are four legislative measures governing access to retained data. Three of these measures are provided for in the Code of Criminal Procedure, specifically in Articles 48-27 of the CPP (1) and Article 67-1 of the CPP (2), and one is provided for by Article 7.2 of the SRE Law (3). It is therefore necessary to examine whether the various access measures comply with the requirements of the CJEU described above.

****A. Access measures based on Article 48-27 of the Code of Criminal Procedure****

156. Article 1, point 2° of the draft law intends to replace Article 48-27 of the CPP and adds a new access measure to the existing access measure for identification data (1) already provided for in this article.

110 See judgment of December 21, 2016, Tete2 Sverige and Watson et al., C-203/15 and C-698/15, EU:C:2016:970, paragraph 120.

111 See judgment of March 2, 2021, Prokuratuur, C-746/18, EU:C:2021:152, paragraph 58.

112 Ibid.

113 See judgment of October 6, 2020, La Quadrature du Net et al., C-511/18, C-512/18 and C-520/18, EU:C:2020:791.

114 See judgment of October 6, 2020, Privacy International, C-623/17, EU:C:2020:790, paragraph 72.

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****Article.**** Indeed, the new paragraph 2 of Article 48-27 of the CPP introduces a measure of access related to IP data (2). Since these two measures must meet different requirements, it is necessary to examine them separately.

1. ****The measure of access to identification data based on Article 48-27.1 of the Code of Criminal Procedure****

157. The draft law aims to adapt the wording of Article 48-27 of the CPP to reflect changes in

telecommunications law, notably the introduction of Article 10ter.1, which establishes the legal obligation for operators and providers to retain users' identification data. Thus, the new wording of Article 48-27.1 of the CPP will grant the investigating judge and the public prosecutor the ability to access this identification data.

158. Regarding the objectives for which access to retained data is possible, it should be noted that the provision under review does not limit applicability to specific offenses. Therefore, the use of this access measure is possible for both the safeguarding of national security and the fight against serious crime, as well as for the fight against crime in general.

159. In the ruling *Ministerio Fiscal* of 2018, the CJEU was able to rule on such a measure of access to identification data only. It particularly clarifies the question of for which objectives (national security, serious crime, simple crime) access to identification data alone is possible.

160. It is clear from this ruling that the Court determines the severity of the interference in the private lives of the individuals concerned based on the nature of the accessed data. Thus, when data is accessed that does not allow for precise conclusions regarding the private lives of the individuals concerned, the interference is not classified as serious. In the specific case of the ruling *Ministerio Fiscal*, the data only allowed for the correlation, during a specified period [12 days], of the activated SIM card(s) with the stolen mobile phone and the civil identity of the holders of these SIM cards. Without cross-referencing with the data related to the communications made with said SIM cards and the location data, this data does not allow for knowledge of the date, time, duration, and recipients of the communications made with the SIM card(s) in question, nor the places where these communications took place or the frequency of such communications with certain individuals during a given period. The Court concludes by stating that if access is therefore aimed at civil identity data, that is to say, the name, surname, and, where applicable, the address, as well as the only phone numbers corresponding to these SIM cards, this interference cannot be classified as serious.

115 See judgment of October 2, 2018, *Ministerio Fiscal* C-207/16, EU:C:2018:788, paragraphs 48 to 63.

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161. In the same ruling, the CJEU states that "when the interference involved in such access is not serious, the said access may be justified by an objective of prevention, investigation, detection, and prosecution of 'criminal offenses' in general." It follows that, as long as they do not allow for precise conclusions regarding the private lives of the individuals concerned, access to data enabling the identification of users is possible for the purposes of safeguarding national security, combating serious crime, and fighting crime in general.

162. In light of the above, the provision under review appears to be in compliance with the case law of the CJEU, but only insofar as it effectively targets access to data for the purpose of identifying users. Given the current wording of the article, the CNPD has several questions.

163. First, it is necessary to question the phrase "on the basis of all data held by him under Article 70ter, paragraph 1, of the amended law of May 30, 2005" in the first paragraph of Article 48-27 of the CPP. In view of what has been raised in section I.B.2 and in particular point 119 of this opinion, the CNPD wonders whether it truly only concerns identification data or if it goes beyond that. In the latter case, the provision would not comply with the case law of the CJEU.

164. Secondly, the CNPD also expresses doubts regarding the scope of point 2° of paragraph 1 in that

it provides for access for the purposes of "identifying the electronic communication services to which a specific person is subscribed or which are usually used by a specific person." Does such identification of the services used not go beyond what is permitted by the CJEU, which explicitly refers to the possibility of accessing data for the purposes of identifying users?

165. If the access referred to in Article 48-27.1 of the CPP were broader and also targeted data that should be considered as traffic and location data, then access should be regarded as allowing for precise conclusions regarding the private lives of the individuals concerned. The interference would thus be classified as serious, and access could only be possible for the purposes of safeguarding national security and combating serious crime.

166. Furthermore, regarding the CJEU's requirement that "access may, in principle, only be granted, in relation to the objective of combating crime, to data of persons suspected of planning, committing, or having committed a serious offense or being involved in one way or another in such an offense," the CNPD notes that the CMPD.

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****Draft Law Does Not Explicitly Provide For It.**** It considers that it is up to the investigating judge or the public prosecutor to justify the existence of such a link between the person concerned and the objective pursued in the reasoned and written decision mentioned in Article 48-27.1 of the CPP. However, the CNPD wonders whether the text should be amended in this regard.

167. Furthermore, it should be noted that the measure for accessing civil identity data does not contain the guarantee of informing the persons concerned by the competent authorities that their data has been accessed. To the extent that the CJEU requires the existence of such a guarantee, the CNPD believes that the provision should be supplemented.

168. Finally, the CNPD regrets that Article 48-27 of the CPP does not contain guarantees regarding persons subject to professional secrecy as well as whistleblowers.

****2. The Measure for Accessing Identification Data Based on Article 48-27.2 of the Code of Criminal Procedure****

169. Next, the draft law intends to introduce a new measure for access under Article 48-27.2 of the CPP, namely the possibility of accessing, by decision of the public prosecutor or the investigating judge and for the purpose of identifying the user, the IP data retained under the new Article 10ter.2 of the Telecom Law.

170. It should be recalled that the recent case law of the CJEU must be taken into consideration for this measure, namely the judgment of April 30, 2024, cited above, *La Quadrature du Net e.a.* (Personal Data and the Fight Against Counterfeiting), particularly points 95 to 122. This judgment provides clarifications regarding the requirements that a legislative provision allowing access to retained IP addresses must meet, including concerning prior control.

171. Regarding the requirements that a measure for accessing IP addresses assigned to the source must meet, and specifically the objectives for which such access may be decided, the Court links this to its observations on the retention of such data. Thus, the Court considers that separate and secure retention of the data is a prerequisite for accessing IP addresses assigned to the source for so-called minor offenses to be possible. This is particularly to ensure that the interference in the private lives of individuals remains as non-intrusive as possible, insofar as no tracing or profiling is possible due to the data being combinable.

172. On the other hand, the Court indicates that only the purpose of identification would justify access to IP addresses in the context of the fight against so-called minor crime and that the measure.

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173. The CNPD considers that the provision under review must be revised to comply with this case law. It also welcomes that the measure can only be taken for the sole purpose of identification. Indeed, any use for other purposes appears to be non-compliant with the case law of the CJEU.

174. Nevertheless, regarding the CJEU's requirement that "access may, in principle, only be granted, in relation to the objective of combating crime, to data of persons suspected of planning, committing, or having committed a serious offense or being involved in any way in such an offense," the CNPD notes that the draft law does not expressly provide for this. It refers in this regard to the observations raised in point 166 of this opinion.

175. The CNPD further questions why this measure is governed by Article 48-27 of the CPP and not by Article 67-1 of the CPP, particularly in light of the CJEU's requirement for the necessity of prior independent control for access to traffic or location data.

176. Indeed, the CJEU explains that "it is essential that access by the competent national authorities to the retained data is subject to prior control carried out either by a court or by an independent administrative entity and that the decision of this court or entity follows a reasoned request from these authorities presented, in particular, in the context of prevention, detection, or prosecution procedures." It continues by raising that "the requirement of independence to which the authority responsible for exercising prior control must comply [...] imposes that this authority has the status of a third party in relation to the one requesting access to the data, so that the former is able to exercise this control objectively and impartially, free from any external influence." The Court further asserts that "this is not the case for a public prosecutor who directs the investigation procedure and exercises, where appropriate, public action" and concludes that "the public prosecutor is not in a position to carry out the prior control."

177. According to the understanding of the CNPD, the state prosecutor should therefore not be able to order such a measure of access. This possibility should only be attributed to the investigating judge.

117 See judgment of December 21, 2016, *Tele2 Sverige and Watson et al.*, C-203/15 and C-698/15, EU:C:2016:970, paragraph 119.

118 See judgment of March 2, 2021, *Prokuratuur*, C-746/18, EU:C:2021:152, paragraph 51.

119 *Ibid.*, paragraph 54.

120 *Ibid.*, paragraph 57.

121 *Ibid.*

178.

Furthermore, it should be emphasized that the CJEU admits the possibility of accessing traffic and location data without prior authorization, but only in cases of duly justified emergencies. In such

situations, however, the oversight must occur within a short timeframe. Such an emergency procedure is provided for in Article 48-27.3 of the CPP. Nevertheless, the CNPD notes that the provision does not contain a deadline within which the oversight must be carried out. It questions whether a sufficiently short maximum deadline should be established to comply with the CJEU's case law.

179.

It must also be noted that the recent case law of the CJEU allows for a mitigation of this position. Indeed, by allowing the retention and access to IP addresses assigned to the source in the context of combating so-called simple crime for identification purposes, the Court does not fail to rule on the prior oversight by a court or an independent administrative authority in this context. Thus, the Court emphasizes that "in cases where a retention mechanism such as that described in points 86 to 89 of this judgment is implemented, access by the public authority to data relating to the civil identity corresponding to the IP addresses thus retained is, in principle, not subject to the requirement of prior oversight by a court or by an independent administrative entity." It is therefore also necessary to review, if applicable, the provision under examination, in order to respect the observations of the CJEU.

180.

Regarding the guarantee for the individuals concerned to be informed of access to their personal data, the CNPD refers to its observations raised in point 167 of this opinion.

181.

Finally, the CNPD regrets that Article 48-27 of the CPP does not provide guarantees regarding individuals subject to professional secrecy as well as whistleblowers.

B. The access measure based on Article 67-1 of the Code of Criminal Procedure

182.

According to the commentary on the articles, Article 67-1 of the CPP in its new wording "aims at the access of judicial authorities to data relating to traffic and location, retained by the relevant operators and providers in accordance with the provisions set out in the Telecom Law as well as now under the new Article 24-3 of the Code of Criminal Procedure proposed by this draft law."

183.

Thus, the intention of the authors of the draft law seems to be that the investigating judge can order not only access to the retained data for reasons of combating crime.

122 See judgment of April 30, 2024, *La Quadrature du Net et al.* (Personal data and combating counterfeiting), C-470/21, EU:C:2024:370, in particular points 123 to 151.

123 Ibid., point 134.

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serious crime, but also for the purposes of safeguarding national security under Article 50/s of the Telecom Act.

184.

However, it notes that Article 67-1 of the CPP seems to only target situations where "the facts carry a criminal penalty or a correctional penalty whose maximum is equal to or greater than one year of imprisonment."

185.

In this regard, the CNPD wishes to remind that in accordance with the principle of the hierarchy of objectives, access to retained data "can, in principle, only be justified by the general interest objective for which this retention has been imposed on these providers. This is not the case if the importance of the objective pursued by access exceeds that of the objective that justified the retention."¹²⁴ It follows

that retained data, for example for reasons of safeguarding national security, cannot be accessed for the purposes of combating serious crime.

186.

The CNPD is aware that the terminology "the facts carry a criminal penalty or a correctional penalty whose maximum is equal to or greater than one year of imprisonment" seems to also include offenses that jeopardize national security. However, it is necessary to question how, in practice, the distinction between access to retained data for the purposes of combating serious crime and access to retained data for the purposes of safeguarding national security is made.

187.

Should Article 67-1 of the CPP be read in such a way that the judge cannot order access to retained data for the purposes of safeguarding national security? In this case, would this not deprive the investigating judge of a necessary measure within the framework of the investigation?

188.

Shouldn't the wording of Article 67-1 of the CPP be reviewed to ensure that the investigating judge has all necessary access measures at their disposal, while respecting the principle of the hierarchy of objectives?

189. Regarding the objective criteria for defining the circumstances and conditions under which the competent national authorities can obtain access to retained data, the authors of the draft law indicate in the commentary on the articles that "Article 67-1 already subjects access to retained data to the prerequisite condition of facts that 'carry a criminal penalty or a correctional penalty whose maximum is equal to or greater than one year of imprisonment.'" According to the authors of the draft law, this condition seems sufficient to meet the requirements of the CJEU.

124 See judgment of April 5, 2022, Commissioner of An Garda Síochána e.a., C-140/20, EU:C:2022:258, paragraph 98.

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190. The CNPD questions whether the provision under review sufficiently meets the requirement that there exists a "link, at the very least indirect, with the pursued objective, which cannot be considered limited to what is strictly necessary." The CJEU requires that legislation provides for the existence of at least an indirect link between the objective of combating crime and the person whose data will be accessed. However, for this latter requirement, the Court admits a mitigation in the case of threats from terrorist activities. In this case, it is sufficient that objective elements demonstrate that the accessed information may contribute to the fight against such activities. It refers in this regard to its observations raised in point 166 of this opinion.

191. Furthermore, regarding the requirement "that the competent national authorities to which access to the retained data has been granted inform the persons concerned, within the framework of the applicable national procedures, as soon as such communication is not likely to compromise the investigations carried out by these authorities," the CNPD welcomes that the draft law retains this additional guarantee against the risks of abuse.

192. Nevertheless, the CNPD wonders how this guarantee is implemented in practice. How are individuals who ultimately are not subject to criminal proceedings informed? Are all individuals informed, namely the targeted person as well as the individuals with whom this person was in correspondence?

193. Finally, the CNPD regrets that Article 67-1 of the CPP does not contain guarantees regarding individuals subject to professional secrecy as well as whistleblowers.

C. The access measure based on Article 7.2 of the SRE Law

194. Although the draft law intends to make only minor modifications to Article 7 of the SRE Law, the CNPD considers it necessary to raise a few observations since it governs the access of the SRE to traffic and location data.

195. Thus, the CNPD particularly questions whether Article 7 of the SRE Law also governs the access of the latter to identification data retained under Article 10ter of the Telecom Law. The phrase "including the identification of correspondents and all forms of communications or the location of the origin or destination of these communications" seems to indicate that this is the case. Nevertheless, the CNPD believes that...

126 See judgment of December 21, 2016, *Tele2 Sverige and Watson et al.*, C-203/15 and C-698/15, EU:C:2016:970, paragraph 119.

127 See judgment of October 6, 2020, *La Quadrature du Net et al.*, C-511/18, C-512/18, and C-520/18, EU:C:2020:791, paragraph 190.

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****Clarifications, for example in the form of references, could aid in the readability and understanding of the access measure.****

196.

Furthermore, it should be noted that the data access measure does not contain the guarantee of informing the individuals concerned by the competent authorities that their data has been accessed. To the extent that the CJEU requires the existence of such a guarantee, the CNPD wonders whether Article 7 of the SRE law should be supplemented.

197.

Finally, the CNPD welcomes that the authors of the draft law have maintained in Article 7.3, paragraph 5, a guarantee for the data of "persons bound by professional secrecy within the meaning of Article 458 of the Penal Code and not themselves suspected of being involved in a current or potential threat falling within the scope of the missions of the SRE as determined in Article 3." In fact, this guarantee at least partially addresses the risks expressed by the CJEU that the transmission by operators and data providers of traffic and location data to law enforcement authorities leads to "chilling effects on users' exercise of their freedom of expression, guaranteed by Article 11 of the Charter. Such chilling effects may particularly affect individuals whose communications are subject, according to national rules, to professional secrecy as well as whistleblowers."

III.

****Other Amending Provisions****

A. ****Alignment of the Definition of Consent with that Adopted by the GDPR****

198.

Article 2, point 1° of the draft law aims, according to the commentary on the articles, to align the definition of the term "consent" in the Telecom law with that used in the GDPR. However, the CNPD notes that this is not a faithful reproduction of the definition and questions this adaptation.

B. ****Amendments to Article 5-1 of the Telecom Law (now Article 5ter of the Telecom Law)****

199. The CNPD questions the added value of paragraph 1. Indeed, the provision states that "the data retained under Articles 5, 5bis, and 9 of this law by the competent authorities as defined in Article 1, paragraph 1, of the law of August 1, 2018, on the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security are subject to the requirements set forth in Article 28 of that same law." To the extent that the aforementioned law of August 1, 2018, on the protection of natural persons...

128 Modified law of July 5, 2016, reorganizing the State Intelligence Service, Article 7, paragraph 3,

subparagraph 5.

129 See judgment of October 6, 2020, Privacy International, C-623/17, EU:C:2020:790, paragraph 72.

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Applies in any case to the processing carried out by these authorities, provided that the processing takes place for the purposes of preventing and detecting criminal offenses, conducting investigations and prosecutions in this matter, or executing criminal sanctions, including protection against threats to public security and the prevention of such threats. The CNPD does not understand the rationale behind this provision.

200. Furthermore, it is appropriate to question the wording of paragraph 2 in that it states that “[d]ata is destroyed when the retention period ends, except for data that has been legally accessed and preserved.” Does this provision apply to the competent authorities, that is, to the authorities that have accessed or to which the data has been transmitted, or does it apply to operators and providers? It is also necessary to consider how this provision interacts with other provisions containing retention periods. Finally, the phrase “except for data that has been legally accessed and preserved” raises questions from the CNPD, given that this exception seems to imply that certain data does not have a maximum retention period. The CNPD therefore believes that this paragraph deserves clarification.

****IV. Additional Observations****

201. The CNPD takes this opportunity presented by the draft law to raise the issue that for violations regarding data protection under the Telecom Law, it is currently unable to exercise its powers derived from Article 58 of the GDPR. It strongly suggests that the legislator provide a provision to extend the competencies and powers of the CNPD concerning the Telecom Law. Thus, it proposes, for example, to supplement Article 12 of the Telecom Law with a second paragraph similar in content to Article 12 of the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection:

“(2) In the context of the missions conferred by paragraph 1, the CNPD has the powers provided for in Article 58 of Regulation (EU) 2016/679.”

202. Furthermore, the CNPD wishes to raise that two provisions of the Telecom Law no longer seem to align with current legislation regarding data protection, given that the GDPR came into effect in 2018 and the Telecom Law dates back to 2005. This concerns paragraphs 3 to 5 of Article 3 of the Telecom Law, which deal with breaches of personal data, and more specifically the notifications to be made to the CNPD, the inventory to be maintained, as well as the criminal sanction in case of failure to comply with obligations. The GDPR recognizes...

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a specific regime for violations of personal data that differs in certain respects from that provided by the Telecom Law. Thus, the GDPR regime does not, for example, include criminal sanctions. Furthermore, the CNPD does not understand what justifies the fact that the notification regime for violations under

the Telecom Law remains different from that provided by the GDPR, particularly concerning the stakeholders who must comply with both regimes. It therefore suggests aligning the Telecom Law with what is provided by the GDPR by replacing the three paragraphs with a reference to the relevant provisions of the GDPR.

203. On the other hand, this concerns Article 4(3)(e) of the Telecom Law, which provides an exception to the principle of confidentiality when the subscriber or user has given their consent. It is important to note that the GDPR has defined consent as "any manifestation of will, free, specific, informed, and unambiguous by which the data subject accepts, by a statement or by a clear affirmative action, that personal data concerning them be processed." The important terms in this definition are "by a statement or by a clear affirmative action." It is therefore necessary for the data subject to have given their consent explicitly. Implicit consent collection is no longer valid. However, the current wording of Article 4(3)(e), particularly the last sentence of this point, allows for the implicit collection of consent.

204. It is important to point out that it follows from the guidance of the European Data Protection Board that Article 95 of the GDPR implies that "the conditions for obtaining valid consent established by the GDPR are also applicable in situations falling within the scope of the 'Privacy and Electronic Communications' Directive." The CNPD further notes that the intention of the authors of the draft law to align the definition of consent in the Telecom Law with that of the GDPR demonstrates that this term must be understood in the same way. The CNPD therefore considers it essential that the last sentence of Article 4(3)(e) of the Telecom Law be removed.

130 Thus, for example, a website can no longer display pre-checked boxes to collect consent. The data subject must check the box themselves.

131 Article 4(3)(e) last sentence of the Telecom Law: "Where technically possible and effective, the agreement of the subscriber or user may be expressed by the use of the appropriate settings of a browser or another application."

132 See the guidelines 5/2020 on consent under Regulation (EU) 2016/679 of the European Data Protection Board, point 7.

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The National Commission for Data Protection

Tine A. Larsen

President

Thierry Lallemand

Commissioner

Marc Lemmer

Commissioner

Alain Herrmann

Commissioner

CNPD

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